



A COMMUNITY OF CHOICE

Building Safety Department

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MEMO

To: Honorable Mayor Patrick Collins, President Rinne, and Members of the City Council

From: Eric Fountain, Director of Compliance Division
Antony (Tono) Pomerleau, Chief Building Official

Subject: 2024 Code Adoption
"AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 15.08, 15.09, 15.10, 15.12, 15.16, 15.22, 15.24 AND 15.26 OF TITLE 15, BUILDINGS AND CONSTRUCTION, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, UPDATING SPECIFIED BUILDING CODE REQUIREMENTS AND MAKING TECHNICAL CORRECTIONS AS FURTHER SPECIFIED."

Date: February 3, 2025

RECOMMENDED MOTION:

Move to recommend the governing body **approve** the 2024 Code Adoption **"AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 15.08, 15.09, 15.10, 15.12, 15.16, 15.22, 15.24 AND 15.26 OF TITLE 15, BUILDINGS AND CONSTRUCTION, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, UPDATING SPECIFIED BUILDING CODE REQUIREMENTS AND MAKING TECHNICAL CORRECTIONS AS FURTHER SPECIFIED."**

Background:

Mr. Mayor, Mr. President, Members of the Council,

The item for consideration proposed with this ordinance is the adoption of the 2024 International Codes and ordinances with modifications for the City of Cheyenne.

The proposed Governing Body review schedule is as follows:

- City Council – January 27th
- Public Services Committee – February 3rd
- City Council – February 10th
- Public Services Committee – February 17th
- City Council – February 24th

State Requirements to maintain jurisdiction:

Jurisdictions are required to adopt minimum standards by ordinance or resolution that are equivalent to or more stringent than those standards adopted by the Wyoming Department of Fire and Electrical Safety (State). The State concluded adoption of the new International Codes and began enforcement on June 28th, 2024. Jurisdictions are required to adopt these updated standards within 6 months of the adoption date by the State. The current standards adopted by the State include:

2024 International Fire Code (IFC)
2024 International Building Code (IBC)
2024 International Fuel Gas Code (IFGC)
2024 International Mechanical Code (IMC)
2024 International Existing Building Code (IEBC)
2023 National Electrical Code (NEC)

Process:

The Compliance Department Building Safety Division has requested involvement from the community to work through the code adoption processes and the Contractor/City 2024 Code Adoption Committee was formed and is consisted of the following members;

- Contractors
 - Dan Edeen (Phoenix Builders)
 - Eric Adams (Gateway Construction)
 - Jeff Story (ACSI)
 - Royce Fertig (5R Construction)
 - Justin Montgomery (Design Point Engineering)
 - Julie Goode (Benchmark Engineering)
 - Jason Miller (Moore Insulation)
 - Will Byers (TDSI)
- City Staff
 - Eric Fountain (Compliance Director)
 - Marilyn Sutherland (Deputy Compliance Director)
 - John Brodie (City Attorney)
 - Tono Pomerleau (Chief Building Official)
 - Bob Mason (Fire Marshal)
 - Devin Collins (Deputy Building Official)
 - Sean Delaney (Inspector)
 - Robert Alcon (Inspector)

Meetings:

Contractor/City 2024 Code Adoption Committee met on the following dates;

-December 3rd, 2024
-December 10th, 2024
-December 17, 2024
-January 7th, 2025

During these meetings the committee collaborated and engaged in many discussions regarding all of the following;

- review of all significant changes relevant to all new codes being considered for code adoption.
- Energy code (IECC) identified as cost prohibitive for adoption by the city of Cheyenne due to many changes over the last 2 code cycles adding significant costs to construction with no net gain to the residential and construction industry within the City of Cheyenne jurisdiction. Further review and discussion surrounding the continued adoption of the 2018 energy code (IECC).
- finalizing discussions concerning the energy code adoption to remain the 2018 code.

Proposed Code/Ordinance revisions:

General items

- For all sections in ordinance multiple administrative and housekeeping changes are required for code and ordinance updates. This also includes section reference updates.

Section 1 IBC (International Building Code)

- Adoption of the 2024 code with no changes to the ordinance or code noted.

Section 2 IEBC (International Existing Building Code)

- Adoption of the 2024 code with no changes to the ordinance or code noted.

Section 3 IRC (International Residential Code)

- Adoption of the 2024 code with no changes to the ordinance or code noted.

Section 4 IPC (International Plumbing Code)

- Adoption of the 2024 code with no changes to the ordinance or code noted.

Section 5 IMC (International Mechanical Code)

- Adoption of the 2024 code with no changes to the ordinance or code noted.

Section 6 IFGC (International Fuel Gas Code)

- Adoption of the 2024 code with no changes to the ordinance or code noted.

Section 7 IPMC (International Property Maintenance Code)

- Adoption of the 2024 code with no changes to the ordinance or code noted.

Section 8 IECC (International Energy Conservation Code)

- Adoption of the 2018 code with the following changes to the ordinance and code noted.
- Section I has been modified to allow for alternative standards to be utilized when testing smaller (affordable) housing where the total square footage (s.f.) is 1500 s.f. or less.
- Section T has been modified to allow for commercial structures with vestibules that do not have a building automation system to be allowed to utilize a stand-alone thermostat for controls.

CONCLUSION:

Staff concludes that the code adoption of the 2024 International Codes have been reviewed with all significant changes and ordinance changes having been presented to the public at large for full review and public comment.

STAFF RECOMMENDATION:

Staff recommends **approval** of "AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 15.08, 15.09, 15.10, 15.12, 15.16, 15.22, 15.24 AND 15.26 OF TITLE 15, BUILDINGS AND CONSTRUCTION, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, UPDATING SPECIFIED BUILDING CODE REQUIREMENTS AND MAKING TECHNICAL CORRECTIONS AS FURTHER SPECIFIED."

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 15.08, 15.09, 15.10, 15.12, 15.16, 15.22, 15.24 AND 15.26 OF TITLE 15, BUILDINGS AND CONSTRUCTION, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, UPDATING SPECIFIED BUILDING CODE REQUIREMENTS AND MAKING TECHNICAL CORRECTIONS AS FURTHER SPECIFIED."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Sections 15.08.010, International Building Code—Adopted, and 15.08.020, Amendments, of Chapter 15, International Building Code Adopted, of Title 15, Buildings and Construction, of the City of Cheyenne, Wyoming, are hereby amended as set out in this section:

15.08.010 - International Building Code—Adopted.

A document, being marked and designated as provided in this section and of which ~~once~~one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Building Code, ~~2021~~2024 Edition, as published by the International Code Council, Inc., including Appendices A, G, H, I, J, and K;

15.08.020 - Amendments.

The International Building Code adopted in Section 15.08.010 above is amended as follows:

- A. Section 101.1. Insert: The City of Cheyenne; for [NAME OF JURISDICTION].
- B. Section 105.5 is deleted and re-created to read as follows:

Every permit issued shall expire and become invalid one year after the date of issuance. The chief building official is authorized to grant one 180-day renewal permit, for a non-expired permit, subject to written request by the permit holder. If approved, a renewal permit is subject to an additional permit fee based upon fifteen percent (15%) of the original permit valuation.

Exception: Large projects, as approved by the chief building official, which cannot logically be completed within twelve (12) months and/or where a contractual completion date is in excess of twelve (12) months.

- C. Section 105.2, work exempt from permit, subsections 1. and 2. under the heading "building" are amended to read as follows:

1. One-story detached accessory structures used as tool and storage sheds, playhouses, and similar uses, provided the floor area is not greater than 200 square feet.
2. Fences not over 6 feet high.

Remaining sections under the heading "building" contained within Section 105.2 remain unchanged.

- D. Section 107.1 is amended by the addition of a second paragraph to read as follows:

Drainage plans shall be submitted for all building permit applications for all new commercial construction. Drainage plans shall be prepared by a Wyoming Licensed Professional Engineer (P.E.) or Professional Land Surveyor (P.L.S.). Drainage plans shall indicate, with drainage arrows, the drainage patterns for the site. Drainage away from the structure shall be in conformance with this code. Site grading and drainage shall conform to the approved grading or drainage plan for the subdivision where the site is located. All drainage easements on the lot shall be shown on the drainage plan. All FEMA-regulated floodplain or city-delineated special flood hazard area boundaries shall also be shown on the drainage plan. No variation from the approved grading or drainage plan for the subdivision where the site is located will be granted an exception, except by written authorization from the city engineer or his designated representative.

- E. Section 109.2 is amended by the addition of a final sentence to read as follows:

Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

- F. Section 109.2.1 is created to read as follows:

Reinspection's. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called is not complete or when corrections called for are not made.

This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this code, but as controlling the practice of calling for inspections before the job is ready for such inspection or reinspection.

Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the deviating from plans requiring the approval of the building official.

To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.

In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

- G. Section 109.4 is amended by the addition of a final sentence to read as follows:

Said fee is an investigation fee and shall be in an amount equal to the permit fee.

- H. Section 109.6 is deleted and re-created to read as follows:

Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.

- I. Section 111.2 is amended to read as follows: 1. Delete the first paragraph and re-create it to read as follows:

Certificate Issued. After the chief building official inspects the building or structure and finds no violations of the provisions of this code or other laws that are enforced by the department of building safety and has received proof of compliance with the development office site plan of record and has received certification from a Wyoming Licensed Professional Engineer (P.E.) or Professional Land Surveyor (P.L.S.) that the approved drainage plan conforms with this code and the approved grading or drainage plan of the subdivision where the site is located, with his or her original seal and signature affixed, the chief building official shall issue a certificate of occupancy that contains the following: (Remainder of Section ~~112.2~~ 111.2 unchanged).

- J. Section 113 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

- K. Section 114.4 is amended by the addition of a final sentence to read as follows:

Penalties shall be as specified in Section 1.24.010 of the Cheyenne City Code.

- L. Chapter 13, Energy Efficiency, is amended to read as follows:

1301.1.1 Criteria. Buildings shall be designed and constructed in accordance with the International Energy Conservation Code, 2018 Edition, as adopted in City Code Chapter 15.26.

- M. Section 1512.2.1.1 is amended by deleting Exception Number 3 and recreating Exception Number 3 to read as follows:

3. Where the existing roof has one or more applications of asphalt shingles as the City of Cheyenne is considered to be in an area subject to moderate hail exposure.

- N. Section 1608.2, Ground snow loads, is amended by the addition of a final sentence to read as follows:

The ground snow load for the City of Cheyenne shall be thirty (30) pounds per square foot.

- O. Section 1609.4, Exposure category, is amended by adding a first sentence to read as follows:

The exposure category for the City of Cheyenne is Exposure C.

- P. Section 1612.3. Insert: The Laramie County, Wyoming and Incorporated Areas of the City of Cheyenne; for [NAME OF JURISDICTION] and January 17, 2007 for [DATE OF ISSUANCE].

- Q. Appendix J, Grading, is amended as follows:

Section J103.1 is deleted and re-created to read as follows:

Permits required. Except as exempted in Section J103.2, no grading shall be performed without first having obtained a permit from the city engineer's office. A grading permit does not include the construction of retaining walls or other structures.

The following sections are hereby created to read as follows:

Section J103.1.1 Grading Fees. Fees shall be assessed in accordance with the provisions of this section.

Section J103.1.2 Plan Review Fees. When a plan or other data are required to be submitted, a plan review fee shall be paid at the time of submitting plans and specifications for review. Said plan review fee shall be as set forth in Table J103.1. Separate plan review fees shall apply to retaining walls or major drainage structures as required elsewhere in this code. For excavation and fill on the same site, the fee shall be based on the volume of excavation or fill, whichever is greater.

Section J103.1.3 Grading Permit Fees. A fee for each grading permit shall be paid as set forth in Table J103.1. Separate permits and fees shall apply to retaining walls or major drainage structures as required elsewhere in this code. There shall be no separate charge for standard terrace drains and similar facilities.

Table J103.1 — Grading Fees

Grading Plan Review Fees

50 cubic yards (38.2 m ³) or less	No fee
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51 to 100 cubic yards (40 m ³ to 76.5 m ³)	\$23.50
101 to 1,000 cubic yards (77.2 m ³ to 764.6 m ³)	\$37.00
1,000 to 10,000 cubic yards (765.3 m ³ to 7645.5 m ³)	\$49.25
10,000 to 100,000 cubic yards (7646.3 m ³ to 76455 m ³)	\$49.25 for the first 10,000 cubic yards (7645.5 m ³), plus \$24.50 for each additional 10,000 yards (7645.5 m ³) or fraction thereof.
100,001 to 200,000 cubic yards (76456 m ³ to 152911 m ³)	\$269.75 for the first 100,000 cubic yards (76455 m ³), plus \$13.25 for each additional 10,000 cubic yards (7645.5 m ³) or fraction thereof.
200,001 cubic yards (152912 m ³) or more	\$402.25 for the first 200,000 cubic yards (152911 m ³), plus \$7.25 for each additional 10,000 cubic yards (7645.5 m ³) or fraction thereof.
Other fees:	
Additional plan review required by changes, additions or revisions to approved plans	\$50.50 per hour* (minimum charge — one-half hour)

* Or the total hourly cost to the jurisdiction, whichever is the greatest. This cost shall include supervision, overhead, equipment, hourly wages and fringe benefits of the employees involved.

Grading Permit Fees¹

50 cubic yards (38.2 m ³) or less	\$23.50
51 to 100 cubic yards (40 m ³ to 76.5 m ³)	\$37.00
101 to 1,000 cubic yards (77.2 m ³ to 764.6 m ³)	\$37.00 for the first 100 cubic yards (76.5 m ³) plus \$17.50 for each additional 100 cubic yards (76.5 m ³) or fraction thereof.
1,000 to 10,000 cubic yards (765.3 m ³ to 7645.5 m ³)	\$194.50 for the first 1,000 cubic yards (764.6 m ³), plus \$15.40 for each additional 1,000 cubic yards (764.6 m ³) or fraction thereof.
10,000 to 100,000 cubic yards (7646.3 m ³ to 76455 m ³)	\$325.00 for the first 10,000 cubic yards (7645.5 m ³), plus \$66.00 for each additional 10,000 cubic yards (7645.5 m ³) or fraction thereof.

100,001 cubic yards (76456 m ³) or more	\$919.00 for the first 100,000 cubic yards (76455 m ³), plus \$36.50 for each additional 10,000 cubic yards (7645.5 m ³) or fraction thereof.
Other inspections and fees:	
1. Inspections outside of normal business hours	\$50.50 per hour ² (minimum charge — two hours)
2. Reinspection fees assessed under provisions of Section 108.2.1	\$50.50 per hour ²
3. Inspections for which no fee is specifically indicated	\$50.50 per hour ² (minimum charge — one-half hour)

¹ The fee for a grading permit authorizing additional work to that under a valid permit shall be the difference between the fee paid for the original permit and the fee shown for the entire project.

² Or the total hourly cost to the jurisdiction, whichever is the greatest. This cost shall include supervision, overhead, equipment, hourly wages and fringe benefits to the employees involved.

Section 2. That Section 15.09.010, International Existing Building Code—Adopted, of Chapter 15.09, International Existing Building Code, of Title 15, Buildings and Construction, of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

15.09.010 - International Existing Building Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Existing Building Code, ~~2021~~2024 Edition, as published by the International Code Council, Inc.

Section 3. That Sections 15.10.010, International Residential Code—Adopted, and 15.10.020, Amendments, of Chapter 15.10, International Residential Code Adopted, of Title 15, Buildings and Construction, of the City of Cheyenne, Wyoming, are hereby amended as set out in this section:

15.10.010 - International Residential Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy of which is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Residential Code, ~~2021~~2024 Edition, as published by the International Code Council, Inc., including Appendices ~~AE, AG, AH and AJ;~~ BA, BB, CD and BE;

15.10.020 - Amendments.

The International Residential Code adopted in Section 15.10.010 above is amended as follows:

- A. Section R101.1. Insert: The City of Cheyenne; for [NAME OF JURISDICTION].
- B. Section R105.2, Work exempt from permit, Subsection 2. under the heading "Building" is amended to read as follows:

- 2. Fences not over 6 feet high.

- C. Section R105.5 is deleted and re-created to read as follows:

Every permit issued shall expire and become invalid one year after the date of issuance. The chief building official is authorized to grant one 180-day renewal permit, for a non-expired permit, subject to written request by the permit holder. If approved, a renewal permit is subject to an additional permit fee based upon fifteen percent (15%) of the original permit valuation.

- D. Section R106.2 is amended by the addition of a second paragraph to read as follows:

Drainage plans shall be submitted for all building permit applications for all new residential construction. Drainage plans shall be prepared by a Wyoming Licensed Professional Engineer (P.E.) or Professional Land Surveyor (P.L.S.). Drainage plans shall indicate, with drainage arrows, the drainage patterns for the site. Drainage away from the structure shall be in conformance with this code. Site grading and drainage shall conform to the approved grading or drainage plan for the subdivision where the site is located. All drainage easements on the lot shall be shown on the drainage plan. All FEMA-regulated floodplain or city-delineated special flood hazard area boundaries shall also be shown on the drainage plan. No variation from the approved grading or drainage plan for the subdivision where the site is located will be granted an exception, except by written authorization from the city engineer or his designated representative.

- E. Section R108.2. Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

- F. Section R108.2.1 is created to read as follows:

Reinspections. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called is not complete or when corrections called for are not made.

This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this code, but as controlling the

practice of calling for inspections before the job is ready for such inspection or reinspection.

Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the inspector, for failure to provide access on the date for which inspection is requested, or for deviating from plans requiring the approval of the building official.

To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.

In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

G. Section R108.5 is deleted and re-created to read as follows:

Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.

H. Section R108.6 is amended to read as follows:

Work commencing before permit issuance. Any person who commences any work on a building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits shall be subject to an investigation fee. The investigation fee shall be in an amount equal to the permit fee.

I. Section R110.3 is amended to read as follows: 1. Delete the first paragraph and re-create to read as follows:

After the chief building official inspects the building or structure and finds no violations of the provisions of this code or other laws that are enforced by the Department of Building Safety and has received certification from a Wyoming Licensed Professional Engineer (P.E.) or Professional Land Surveyor (P.L.S.) that the approved plot plan conforms with this code and the approved grading or drainage plan of the subdivision where the site is located, with his or her original seal and signature affixed, the chief building official shall issue a certificate of occupancy which shall contain the following: (Remainder of section unchanged).

J. Section R112 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

K. Section R113.4 is amended by the adoption of a final sentence to read as follows:

Penalties shall be as specified in Section 1.24.010 of the Cheyenne City Code.

- L. Section R301.2 and Table R301.2(1) Climatic and Geographic Design Criteria, is amended to read as follows:

GROUND SNOW LOAD: 30# psf; WIND SPEED: 115 (Vult) mph; TOPOGRAPHIC EFFECTS: NO; SPECIAL WIND REGION: NO; WIND-BORNE DEBRIS ZONE: NO; SEISMIC DESIGN CATEGORY: B; WEATHERING: Severe; FROST LINE DEPTH: 36 inches (for footings and foundations); TERMITE: Slight to Moderate; WINTER DESIGN TEMP: -1 degree Fahrenheit; ICE BARRIER UNDER LAYMENT REQUIRED: YES; FLOOD HAZARDS: FIRM effective date, September 30, 1977; Map effective date: January 17, 2007; panel numbers and dates of the currently effective FIRMS:

56021C1083F	01/17/2007
56021C1079F	01/17/2007
56021C1078F	01/17/2007
56021C1111F	01/17/2007
56021C1091F	01/17/2007
56021C1087F	01/17/2007
56021C1086F	01/17/2007
56021C1118F	01/17/2007
56021C1114F	01/17/2007
56021C1113F	01/17/2007
56021C1089F	01/17/2007
56021C1376F	01/17/2007
56021C1352F	01/17/2007
56021C1351F	01/17/2007
56021C1335F	01/17/2007
56021C1353F	01/17/2007
56021C1092F_ REV_04_14_11	04/14/2011
56021C1113F_ REV_04_14_11	04/14/2011
56021C1094F_ REV_04_14_11	04/14/2011
56021C1093F_	04/14/2011

REV_04_14_11	
56021C1093F_ REV_09_27_12	09/27/2012
56021C1089F_ REV_09_27_12	09/27/2012
56021C1356F_ REV_09_27_12	09/27/2012
56021C1352F_ REV_09_27_12	09/27/2012;

AIR FREEZING INDEX: 2,000; MEAN ANNUAL TEMP: 45 degrees Fahrenheit.

M. Section R302.13 is amended by creating exception 5-6 for the fire protection of floors for dwellings where future work in the basement is planned by homeowner as follows:

5-6. Floor assemblies to accommodate mechanical, plumbing or electrical work for future basement finishes by the homeowner.

N. Section R303.4-R325.3 is deleted in its entirety.

O. Section R309.5-R317.5 is deleted in its entirety.

P. Section R311.7.2-R318.1 is amended by deleting exception Number 1.

Q. Section R313.05-R309 is created to read as follows:

R313.05-R309 The provisions contained in this section shall not be mandatory but shall be optional at the discretion of the owner or contractor of the structure. In the event the owner or contractor wishes to provide an automatic fire sprinkler system, it shall comply with this section.

Other provisions contained in Section R313-R309 remain unchanged.

R. Section R908.3.1.1-R908.4 is amended by deleting item Number 3 and re-creating item Number 3 to read as follows:

3. Where the existing roof has one or more applications of asphalt shingles as the City of Cheyenne is considered to be in an area subject to moderate hail exposure.

S. Part IV Energy Conservation, Chapter 11 Energy Efficiency is deleted and re-created to read as follows:

CHAPTER 11 ENERGY EFFICIENCY

Energy efficiency shall be as prescribed by the 2018 Edition of the International Energy Conservation Code as adopted in City Code Chapter 15.26.

- T. Section G2406.2, Exceptions 3 and 4, are deleted in their entirety and re-created to read as follows:

Unvented fuel burning equipment shall not be installed, used, maintained, or permitted to exist in any building.

- U. Section G2413.7 is deleted and re-created to read as follows:

Maximum gas delivery pressure: The maximum gas delivery pressure for one and two-family dwellings shall be six (6) inches water column.

- V. Sections G2417.4.1 and G2417.2 are deleted and re-created to read as follows:

The test pressure to be used shall be not less than 10 PSI for a 15-minute duration.

- ~~W. Sections G2445.1 through G2445.7.1 are deleted with Section G2445.1 re-created to read as follows:~~

~~G2445.1 General. Unvented fuel burning equipment shall not be installed, used, maintained, or permitted to exist in any building.~~

- ~~X. W.~~ Section P2503.5.1. The first sentence is amended to read as follows:

P2503.1 Rough Plumbing. DWV systems shall be tested on completion of the rough piping installation by water or by air with no evidence of leakage.

- ~~Y. X.~~ Section P2603.5.1. Insert 36 inches for [NUMBER] in both locations.

- ~~Z. Y.~~ Section P3008 is deleted in its entirety.

- ~~AA. Z.~~ Section P3103.1. Change 6 inches to 12 inches in both locations.

- ~~BB. AA.~~ Delete all the electrical chapters from the International Residential Code to include chapters: 34, 35, 36, 37, 38, 39 and 40. All electrical work shall comply with the currently adopted NFPA 70 (National Electrical ~~Code~~ Code).

- ~~CC. BB.~~ Section ~~AE101.3, BA101.3~~, Zoning, is created to read as follows:

All manufactured housing units placed within the city shall comply with the provisions of Section 5.8.2.h of the Cheyenne Unified Development Code.

Section 4. That Sections 15.12.010, International Plumbing Code—Adopted, and 15.12.020, Amendments, of Chapter 15.12, International Plumbing Code Adopted, of Title 15, Buildings and Construction, of the City of Cheyenne, Wyoming, are hereby amended as set out in this section:

15.12.010 - International Plumbing Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Plumbing Code, ~~2021~~2024 Edition, as published by the International Code Council, Inc., including Appendices B, C, D, AND E;

15.12.020 - Amendments.

The International Plumbing Code adopted in Section 15.12.010 above is amended as follows:

- A. Section 101.1. Insert: The City of Cheyenne; for [NAME OF JURISDICTION].
- B. Section ~~109.2~~108.2. Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.
- C. Section ~~109.5~~108.6 is deleted and re-created to read as follows:

Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.
- D. Section ~~108.4.3.1~~111.4.3.1 is created to read as follows:

Reinspections. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called is not complete or when corrections called for are not made.

This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this code, but as controlling the practice of calling for inspections before the job is ready for such inspection or reinspection.

Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the inspector, for failure to provide access on the date for which inspection is requested, or for deviating from plans requiring the approval of the building official.

To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.

In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

- E. Section ~~109.3~~ 108.4 is deleted and re-created to read as follows:

Any person who shall violate a provision of this code or who shall fail to comply with any of the requirements thereof or who shall erect, install, alter or repair plumbing work in violation of the approved construction documents, directive of the code official or of a permit or certificate issued under the provisions of this code shall be subject to penalties as specified in Section 1.24.010 of the Cheyenne City Code.

- F. Section ~~113.4~~ 115.4 The last sentence is amended to read as follows:

Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to penalties as prescribed by law.

- G. Section ~~109~~ 112 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

- H. Section ~~115.4~~ 114.4 is deleted and recreated to read as follows:

[A] ~~115.4~~ 114.4 Violation penalties. Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter or repair plumbing work in violation of the approved construction documents or directive of the code official, or of a permit or certificate issued under the provisions of this code, shall be subject to penalties as specified in Section 1.24.010 of the Cheyenne City Code.

- I. Section 305.4 is amended by changing the number 12 inches to 36 inches.

- J. Section 312.3 is amended by deleting the first sentence of the section.

- K. Section 714 is deleted in its entirety.

- L. Section 903.1.1 Insert 12 for [NUMBER].

- M. Section 1003.3 is amended by the addition of a final sentence to read as follows:

Grease interceptors and separators shall also comply with the Cheyenne Board of Public Utilities rules and regulations.

Section 5. That Sections 15.16.010, International Mechanical Code—Adopted, and 15.16.020, Amendments of Chapter 15.16, International Mechanical Code Adopted, of Title 15, Buildings and Construction, of the City of Cheyenne, Wyoming, are hereby amended as set out in this section:

15.16.010 - International Mechanical Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Mechanical Code, ~~2021~~ 2024 Edition, as published by the International Code Council, Inc., including Appendix A;

15.16.020 - Amendments.

The International Mechanical Code adopted in Section 15.16.010 above is amended as follows:

- A. Section 101.1. Insert: The City of Cheyenne; for [NAME OF JURISDICTION].
- B. Section ~~109.2.~~ 108.2. Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.
- C. Section ~~109.6~~ 108.6 is deleted and re-created to read as follows:

Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.

- D. Section ~~108.3.3.1~~ 111.3.3.1 is created to read as follows:

Reinspections. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called is not complete or when corrections called for are not made.

This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this code, but as controlling the practice of calling for inspections before the job is ready for such inspection or reinspection.

Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the inspector, for failure to provide access on the date for which inspection is requested, or for deviating from plans requiring the approval of the building official.

To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.

In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

- E. Section ~~109.4~~ 108.4 is deleted and re-created to read as follows:

Any person who shall violate a provision of this code or who shall fail to comply with any of the requirements thereof or who shall erect, install, alter, or repair mechanical work in violation of the approved construction documents, directive of the code official or of a permit or certificate issued under the provisions of this code shall be subject to penalties as specified in Section 1.24.010 of the Cheyenne City Code.

- F. Section ~~113.4~~ 115.4 The last sentence is amended to read as follows:

Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to penalties as prescribed by law.

- G. Section ~~114~~ 112 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the Board of Appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

- H. Section 303.3 is amended by the addition of number 6, under "prohibited locations," to read as follows:

Unvented fuel burning equipment shall not be installed, used, maintained, or permitted to exist in any building.

- I. Section 506.3.6 is amended by changing the words gypsum wallboard to cement board.

- J. Section 507.1.2 is amended by the addition of one exception to read as follows:

Exception: Commercial facilities that utilize residential stovetops need not provide a Type I or Type II hood, subject to all of the following:

1. The equipment is used for warming or limited cooking only, no frying is permitted and a permanent sign is posted stating "No Cooking Creating Grease Laden Vapors Permitted.";
2. A 2A-10BC fire extinguisher is placed in the kitchen; and
3. Approval of the exception is provided, in writing, by the city fire code official.

K. The exception #1 to Section 507.2.6 is amended as follows:

Exception: Clearance shall not be required from 1/2-inch or thicker cementitious wallboard attached to noncombustible structures provided that a smooth, cleanable, nonabsorbent and noncombustible material is installed between the hood and the cementitious wallboard over an area extending not less than 18 inches in all directions from the hood.

Section 6. That Sections 15.22.010, International Fuel Gas Code—Adopted, and 15.22.020, Amendments, of Chapter 15.22, International Fuel Gas Code Adopted, of Title 15, Buildings and Construction, of the City of Cheyenne, Wyoming, are hereby amended as set out in this section:

15.22.010 - International Fuel Gas Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

International Fuel Gas Code, ~~2021~~2024 Edition, as published by the International Code Council, Inc., including Appendices A, B and C;

15.22.020 - Amendments.

The International Fuel Gas Code adopted in Section 15.22.010 above is amended as follows:

- A. Section 101.1. Insert: The City of Cheyenne; for [NAME OF JURISDICTION].
- B. Section ~~109.2~~108.2 Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.
- C. Section ~~109.6~~108.6 is deleted and re-created to read as follows:

Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.

- D. Section ~~112.3.3.1~~111.3.3.1 is created to read as follows:

Reinspections. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called is not complete or when corrections called for are not made.

This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this code, but as controlling the practice of calling for inspections before the job is ready for such inspection or reinspection.

Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the inspector, for failure to provide access on the date for which inspection is requested, or for deviating from plans requiring the approval of the building official.

To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.

In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

- E. Section ~~109.4~~ 108.4 is deleted and re-created to read as follows:

Any person who shall violate a provision of this code or who shall fail to comply with any of the requirements thereof or who shall erect, install, alter or repair work in violation of the approved construction documents, directive of the code official or of a permit or certificate issued under the provisions of this code shall be subject to penalties as specified in Section 1.24.010 of the Cheyenne City Code.

- F. Section ~~116.4~~ 114.4. The last sentence is amended to read as follows:

Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to penalties as prescribed by law.

- G. Section ~~113~~ 112 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

- H. Section 303.3, Exceptions 3 and 4, are deleted in their entirety and re-created to read as follows:

Unvented fuel burning equipment shall not be installed, used, maintained, or permitted to exist in any building.

- I. Section 402.7 is deleted and re-created to read as follows:

Maximum Delivery Pressure. The maximum natural gas delivery pressure shall be six inches water column. If, in the design of large commercial buildings, elevated pressure is needed, the applicant shall provide written approval from the supplying utility company to the chief building official for approval. No change in the gas delivery pressure shall be permitted without prior approval from both the utility company and the chief building official.

J. Section 406.4.1 is amended by amending the first sentence to read as follows:

The test pressure to be used shall be not less than 10 PSI for a 15-minute duration.
Welded pipe shall be minimum 60 PSI for a 30-minute duration.

~~K. Paragraph 8 of Section 501.8 is deleted in its entirety.~~

Section 7. That Sections 15.24.010, International Property Maintenance Code—Adopted, and 15.24.020, Amendments, of Chapter 15.24, Dangerous Building Code, of Title 15, Buildings and Construction, of the City of Cheyenne, Wyoming, are hereby amended as set out in this section:

15.24.010 - International Property Maintenance Code—Adopted.

A document, being marked and designated as provided in this section and of which one copy is on file in the office of the city clerk and open for inspection of the public, is adopted and made a part hereof as if fully set out in this chapter:

Chapters 1 and 2 of the International Property Maintenance Code, ~~2021~~2024 Edition, as published by the International Code Council, Inc.

15.24.020 - Amendments.

The code adopted in Section 15.24.010 above is amended as follows:

A. Section 101.1 is deleted and re-created to read as follows:

Title. These regulations shall be known as the city of Cheyenne Dangerous Building Code, hereinafter referred to as "this code."

B. Section 104.1 is deleted and re-created to read as follows:

Fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

C. Section ~~107~~106 is deleted and re-created to read as follows:

Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

D. With the exception of the amendments set forth above in subsections A, B, and C, chapters adopted from the 2018 International Property Maintenance Code include Chapters 1, 2, 3, 4, 5, 6, 7 and 8.

Section 8. That Section 15.26.020, Amendments, of Chapter 15.26, International Energy Conservation Code Adopted, of Title 15, Buildings and Construction, of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

15.26.020 - Amendments.

The International Energy Conservation Code adopted in Section 15.26.010 above is amended as follows:

- A. Section 101.1 insert: The City of Cheyenne; for [NAME OF JURISDICTION].
- B. Reserved.
- C. Section C105.3/R105.3 is amended by the addition of the following wording:

C105.3/R105.3 Reinspections. A reinspection fee may be assessed for each inspection or reinspection when such portion of the work for which inspection is called is not complete or when corrections called for are not made.

This section is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this code, but as controlling the practice of calling for inspections before the job is ready for such inspection or reinspection.

Reinspection fees may be assessed when the inspection record card is not posted or otherwise available on the work site, the approved plans are not readily available to the inspector, for failure to provide access on the date for which inspection is requested, or for deviating from plans requiring the approval of the chief building official.

To obtain a reinspection, the applicant shall file an application therefore in writing on a form furnished for that purpose and pay the reinspection fee in accordance with Section 15.08.030.

In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

- D. Section 104.2 fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.
- E. Section 104.3 is amended by the addition of a final sentence to read as follows:

Said fee is an investigation fee and shall be in an amount equal to the permit fee.
- F. Section 104.5 is deleted and re-created to read as follows:

Fee refunds shall be as specified in Section 15.08.040 of the Cheyenne City Code.

G. Section C109.4/R109.4 is amended to read as follows:

C108.4/R108.4 Failure to Comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to penalties as specified in Section 1.24.010 of the Cheyenne City Code.

H. Section C109/R109 is deleted in its entirety and re-created to read as follows:

Appeals shall be made to the board of appeals as prescribed by Section 15.04.020 of the Cheyenne City Code.

I. Section R402.4.1.2 is amended to read as follows:

R402.4.1.2 Testing. The building or dwelling unit shall be tested and verified as having an air leakage rate of not exceeding 5 air changes per hour in Climate Zones 1 and 2, and 4 air changes per hour in Climate Zones 3 through 8. Testing shall be conducted ~~with a blower door at a pressure of 0.2 inches W.G. (50 pascals).~~ in accordance with RESNET/ICC 380, ASTM E779 or ASTM E1827 and reported at a pressure of 0.2 inch w.g. (50 Pascals). Where required by the code official, testing shall be conducted by an approved third party. A written report of the results of the test shall be signed by the party conducting the test and provided to the code official. Testing shall be performed at any time after creation of all penetrations of the building thermal envelope.

Exception: When testing individual dwelling units, an air leakage rate not exceeding 0.30 cubic feet per minute per square foot [0.008 m³/(s × m²)] of the dwelling unit enclosure area, tested in accordance with ANSI/RESNET/ICC 380, ASTM E779 or ASTM E1827 and reported at a pressure of 0.2 inch w.g. (50 Pa), shall be an accepted alternative permitted in all climate zones for:

1. Attached single and multiple-family building dwelling units; and
2. Buildings or dwelling units that are 1,500 square feet (139.4 m²) or smaller.

The remainder of Section 402.4.1.2 is unchanged.

J. Table R402.1.2 is amended to read as follows:

1. Table R402.1.2

Insulation and Fenestration Requirements by Component ^a

Climate Zone	Fenes-tration	Skylight ^b U-Factor	Glazed Fenes-	Ceiling R-Value	Wood-frame Wall	Mass Wall	Floor R-Value	Basement ^c Wall R-Value	Slab ^d R-Value	Crawl-space ^c Wall
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	U-Factor ^b		SHGC ^b		R-Value	R-Value ^g			& Depth	R-Value
6	0.35	0.60	NR	49	20 or 13+5 ^f	15/19	30 ^e	15/19	10, 4 ft	10/13

^a. R-values are minimums. U-factors and SHGC are maximums. R-19 batts compressed into a nominal 2 × 6 framing cavity such that the R-value is reduced by R-1 or more shall be marked with the compressed batt R-value in addition to the full thickness R-value.

^b. The fenestration U-factor column excludes skylights. The SHGC column applies to all glazed fenestration.

^c. "15/19" means R-15 continuous insulated sheathing on the interior or exterior of the home or R-19 cavity insulation at the interior of the basement wall. "15/19" shall be permitted to be met with R-13 cavity insulation on the interior of the basement wall plus R-5 continuous insulated sheathing on the interior or exterior of the home. "10/13" means R-10 continuous insulated sheathing on the interior or exterior of the home or R-13 cavity insulation at the interior of the basement wall.

^d. R-5 shall be added to the required slab edge R-values for heated slabs. Insulation depth shall be the depth of the footing or 2 feet, whichever is less in Zones 1 through 3 for heated slabs.

^e. Or insulation sufficient to fill the framing cavity, R-19 minimum.

^f. "13+5" means R-13 cavity insulation plus R-5 insulated sheathing. If structural sheathing covers 25 percent or less of the exterior, insulating sheathing is not required where structural sheathing is used. If structural sheathing covers more than 25 percent of exterior, structural sheathing shall be supplemented with insulated sheathing of at least R-2.

^g. The second R-value applies when more than half the insulation is on the interior of the mass wall.

K. Table R402.1.4 is amended to read as follows:

Table R402.1.4
Equivalent U-Factors ^a

Climate Zone	Fenestration U-Factor	Skylight U-Factor	Ceiling U-Factor	Frame Wall U-Factor	Mass Wall U-Factor ^b	Floor U-Factor	Basement Wall U-Factor	Crawlspace Wall U-Factor ^c
6	0.35	0.60	0.026	0.057	0.060	0.033	0.050	0.065

^a. Nonfenestration U-factors shall be obtained from measurement, calculation or an approved source.

^b. When more than half the insulation is on the interior, the mass wall U-factors shall be a maximum of 0.17 in Zone 1, 0.14 in Zone 2, 0.12 in Zone 3, 0.10 in Zone 4, except Marine, and the same as the frame wall U-factor in Marine Zone 4 and Zones 5 through 8.

^c. Basement wall U-factor of 0.360 in warm-humid locations as defined by Figure R301.1 and Table R301.1.

L. Table R402.4.1.1 is amended to read as follows:

Table R402.4.1.1
Air Barrier and Insulation Inspection Component Criteria

Component	Criteria
Air barrier and thermal barrier	Exterior thermal envelope insulation for framed walls is installed in substantial contact and continuous alignment with building envelope air barrier. Breaks or joints in the air barrier and filled or repaired. Air-permeable insulation is not used as a sealing material. Air-permeable insulation is inside of an air barrier.
Ceiling/attic	Air barrier in any dropped ceiling/soffit is substantially aligned with insulation and any gaps are sealed. Attic access (except unvented attic), knee wall door, or drop-down stair is sealed.
Walls	Corners and headers are insulated. Junction of foundation and sill plate is sealed.
Windows and doors	Space between window/door jambs and framing is sealed.
Rim joists	Rim joists are insulated and include an air barrier.
Floors (including above-garage and cantilevered floors)	Insulation is installed to maintain permanent contact with underside of subfloor decking. Air barrier is installed at any exposed edge of insulation.
Crawl space walls	Insulation is permanently attached to walls. Exposed earth in unvented crawl spaces is covered with Class I vapor retarder with overlapping joints taped.

Shafts, penetrations	Duct shafts, utility penetrations, knee walls and flue shafts opening to exterior or unconditioned space are sealed.
Narrow cavities	Batts in narrow cavities are cut to fit, or narrow cavities are filled by sprayed/blown insulation.
Garage separation	Air sealing is provided between the garage and conditioned spaces.
Recessed lighting	Recessed light fixtures are airtight, IC rated, and sealed to drywall. Exception — fixtures in conditioned space.
Plumbing and wiring	Insulation is placed between outside and pipes. Batt insulation is cut to fit around wiring and plumbing, or sprayed/blown insulation extends behind piping and wiring.
Shower/tub on exterior wall	Showers and tubs on exterior walls have insulation and an air barrier separating them from the exterior wall.
Electrical/phone box on exterior walls	Air barrier extends behind boxes or air sealed-type boxes are installed.
Common wall	Air barrier is installed in common wall between dwelling units.
HVAC register boots	HVAC register boots that penetrate building envelope are sealed to subfloor or drywall.
Fireplace	Fireplace walls include an air barrier.

M. Section R402.4.4 is deleted.

N. Section R403.3.3 is deleted.

O. Section R403.3.4 is deleted.

P. Section R403.3.5 is amended to read as follows:

R403.3.5 Building Cavities (Mandatory). Building Framing Cavities Shall Not Be Used As Ducts.

Q. Section R403.5 is deleted.

R. Table R406.4 is amended to read as follows:

Table R406.4
Maximum Energy Rating Index

Climate Zone	Energy Rating Index
6	65

S. Section C408.2 is amended by adding exception #3 and #4 as follows, the remaining section is unchanged.

3. Systems in new buildings not exceeding fifteen thousand (15,000) square feet gross floor area.
4. ~~Additions and a~~ Alterations to an existing building.

T. Section C403.4.1.4 is amended by adding exception #2 as follows, the remaining section is unchanged.

2. In buildings without direct-digital controls (DDC), vestibule heaters may be controlled by a stand-alone thermostat configured to limit heating to a temperature of not greater than 55°F.

Section 9. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 10. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle